

****08.11.2024****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing has completed an investigation into the operator PPC Energie Muntenia S.A and found a violation of the provisions of Article 17 of Regulation (EU) 2016/679. As such, the operator was sanctioned with a fine of 4,977.1 lei (equivalent to 1,000 EURO).

The investigation was initiated following a complaint submitted by a data subject who reported receiving unsolicited commercial messages at their email address. During the investigation, it was found that the data subject had exercised their right to erasure multiple times regarding the cessation of processing of their email address by the operator.

Although the data subject received confirmation that the mentioned email address would no longer be used for the indicated consumption location and would be deleted from the database, and that the account created with the complainant's email address had been deleted, the operator continued to send electronic messages.

As such, the operator did not comply with the requests of the client to cease processing by deleting their email from this database, thereby violating the provisions of Article 17 of Regulation (EU) 2016/679.

Additionally, under Article 58(2)(c) of the GDPR, a corrective measure was imposed on the operator to review/update/implement internal procedures regarding the handling of requests submitted by data subjects under Articles 12-22 of Regulation (EU) 679/2016, ensuring compliance in all cases with applicable provisions regarding the analysis and prompt resolution of these requests, so that the operator can ensure that it effectively responds to requests exercising the rights of data subjects, as well as the regular training of the operator's staff in this regard.

****Legal and Communication Department****

****N.A.S.P.D.C.P****